

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

HOUSE BILL 3544

By: Maynard

AS INTRODUCED

An Act relating to technology; defining terms; directing deployers to ensure artificial intelligence (AI) chatbots with human-like features are not made available to minors; requiring age certification systems; permitting alternative version of chatbot for minors; directing deployers of AI companions to make sure they are not made available to minors; providing exemption criteria; directing deployers to implement and maintain systems to prioritize safety and well-being of users; permitting deployers to only collect information in trusting party's best interests; establishing civil penalties; providing for codification; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 10 of Title 75A, unless there is created a duplication in numbering, reads as follows:

As used in this act:

1. "Chatbot" means AI with which users can interact by or through an interface that approximates or simulates conversation through a text, audio, or visual medium;

1 2. "Deployer" means any person, partnership, state or local
2 governmental agency, corporation, or developer that operates or
3 distributes a chatbot;

4 3. "Design features" means any aspect of an AI system that has
5 certain patterns or physical properties that are presented towards a
6 user;

7 4. "Emergency situation" means a situation where a user
8 engaging with a chatbot indicates that they intend to either commit
9 harm to themselves or commit harm to others;

10 5. "Human-like feature" means a generative artificial
11 intelligence system (AI) that does any of the following:

12 a. behaves in a way that would lead a reasonable person
13 to believe the AI is conveying that it has humanity,
14 sentience, emotions, or desires. This includes, but
15 is not limited to:

16 (1) stating or suggesting that it is human or
17 sentient,

18 (2) stating or suggesting emotions, or

19 (3) stating or suggesting it has personal desires.

20 This does not include:

21 (1) functional evaluations, or

22 (2) generic social formalities,

23 b. seeks to build or engage in an emotional relationship
24 with the user. This includes, but is not limited to:

- (1) expressing or inviting emotional attachment,
- (2) reminding, prompting, or nudging the user to return for emotional support or companionship,
- (3) depicting nonverbal forms of emotional support,
- (4) behaving in a way that a reasonable user would consider excessive praise designed to foster emotional attachment or otherwise gain advantage, or
- (5) enabling or purporting to enable increased intimacy based on engagement or pay.

This does not include:

- (1) offering generic encouragement that does not create an ongoing bond, or
 - (2) asking if a user needs further help or support in a neutral, nonemotional context, and
- c. impersonates a real person, living or dead;

6. "Minor" means a person who is under the age of eighteen (18);

7. "Social AI companion" means AI that is specifically designed, marketed, or optimized to form ongoing social or emotional bonds with users, whether or not such systems also provide information, complete tasks, or assist with specific functions;

8. "Therapy chatbot" means any chatbot modified or designed with a primary purpose of providing mental health support,

1 counseling, or therapeutic intervention through the diagnosis,
2 treatment, mitigation, or prevention of mental health conditions;
3 and

4 9. "User" means a person who interacts with AI.

5 SECTION 2. NEW LAW A new section of law to be codified
6 in the Oklahoma Statutes as Section 11 of Title 75A, unless there is
7 created a duplication in numbering, reads as follows:

8 A. Each deployer:

9 1. Shall ensure that any artificial intelligence (AI) chatbot
10 operated or distributed by the deployer that has human-like features
11 is not made available to minors to use, interact with, purchase, or
12 converse with;

13 2. Shall implement reasonable age certification systems to
14 ensure that AI chatbots with human-like features are not provisioned
15 to minors; and

16 3. May, if reasonable, given the purpose of the chatbot,
17 provide an alternative version of the chatbot without human-like
18 features available to minors and nonverified users.

19 B. Deployers operating AI that primarily function as companions
20 shall:

21 1. Ensure that any such chatbots operated or distributed by the
22 deployer are not available to minors to use, interact with,
23 purchase, or converse with; and
24

2. Implement reasonable age verification systems to ensure that such chatbots are not provisioned to minors.

C. Exempted from this section, and may be made available to minors, are therapeutic chatbots that meet all of the following requirements:

1. The chatbot provides a clear and conspicuous disclaimer at the beginning of each individual interaction that it is AI and not a licensed mental health professional;

2. The chatbot is not marketed or designated as a substitute for a human mental health professional;

3. A licensed mental health professional, such as a clinical psychologist, assesses a user's suitability and prescribes the tool as part of a comprehensive treatment plan and monitors its use and impact;

4. Developers provide robust, independent, peer-reviewed clinical trial data demonstrating both the safety and efficacy of the tool for specific conditions and populations; and

5. The system's functions, limitations, and data privacy policies are transparent to both the licensed mental health professional and the user with clear lines of accountability that are established for any harms caused by the system.

SECTION 3. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 12 of Title 75A, unless there is created a duplication in numbering, reads as follows:

1 A. Deployers shall implement and maintain reasonably effective
2 systems to detect, promptly respond to, report, and mitigate
3 emergency situations in a manner that prioritizes the safety and
4 well-being of users over the deployer's other interests.

5 B. Deployers shall collect and store only that information
6 which does not conflict with a trusting party's best interests.
7 Such information must be:

8 1. Adequate, in the sense that it is sufficient to fulfill a
9 legitimate purpose of the deployer;

10 2. Relevant, in the sense that the information has a relevant
11 link to that legitimate purpose; and

12 3. Necessary, in the sense that it is the minimum amount of
13 information which is needed for that legitimate purpose.

14 SECTION 4. NEW LAW A new section of law to be codified
15 in the Oklahoma Statutes as Section 13 of Title 75A, unless there is
16 created a duplication in numbering, reads as follows:

17 A. Any business or person that violates this act shall be
18 subject to an injunction and surrender of any unjust gains due to
19 violation of this act, and shall be liable for a civil penalty of
20 not more than Two Thousand Five Hundred Dollars (\$2,500.00) for each
21 violation or Seven Thousand Five Hundred Dollars (\$7,500.00) for
22 each intentional violation, which shall be assessed and recovered in
23 a civil action brought by the Attorney General.

1 B. Any minor who uses an artificial intelligence (AI) chatbot
2 that does not comply with the terms of this act, or a parent or
3 guardian acting on their behalf, may institute a civil action on
4 their own, or on a class-wide basis, to recover damages in an amount
5 not less than One Hundred Dollars (\$100.00) and not greater than
6 Seven Hundred Fifty Dollars (\$750.00) per user, per incident, or
7 actual damages, whichever is greater, and to obtain injunctive or
8 declaratory relief.

9 SECTION 5. This act shall become effective November 1, 2026.

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